The examination is being carried out on the **following application documents**

**Description, Pages**

1-60 as published

**Claims, Numbers**

1-15 filed in electronic form on 03-02-2017

**Drawings, Sheets**

1/13-13/13 as published

## 1 Prior Art

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2009/322567 A1 (STOCK TODD MICHAEL [US] ET AL) 31 December 2009 (2009-12-31)

D2 US 2009/012661 A1 (LOUIS XAVIER [FR]) 8 January 2009 (2009-01-08)

D3 US 8 692 703 B1 (DOVE RICHARD S [US] ET AL) 8 April 2014 (2014-04-08)

## 2 Method of Mental Acts (Art. 52(2)&(3) EPC)

2.1 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 1 does not involve an inventive step within the meaning of Article 56 EPC.

The subject-matter of claim 1, which concerns a method of collecting information regarding a plurality of flight restriction regions, focuses solely on procedural steps which could be carried out by a person (e.g. by an ATC controller) in whatever way he chose and does not indicate or presuppose technical means for carrying them out.

A conventional computer with display and other user interfaces is considered as the prior art closest to the subject-matter of claim 1.

Starting from this prior art, the contribution made by the claimed subject-matter relates solely to matters excluded from patentability under Art. 52(2)(c) and (3) EPC:

- the steps of receiving receiving, from user input devices, input designating parameters of flight restriction regions, wherein the parameters include a location of the flight restriction regions simply consist of a user manually entering data into a computer;
- the step of determining a space for each of the flight restriction regions, wherein the space depends on the parameters of the flight restriction regions consists of a mental act (*e.g. a cylinder around a point*) (Article 52(2)(c) EPC, Guidelines G-II, 3.5).

In view of this, there is no technical contribution to the art, and thus the presence of an inventive step must be denied (see guidelines G-VII, 5.4 & G-VII, 5.2, second paragraph).

2.2 The same reasoning applies to the subject-matter of claim 14 for which the presence of an inventive step must also be denied.

2.3 The subject-matter of claim 15 is excluded from patentability according to Article 52(2)(c) EPC.

Said computer programme, when running on a computer, does not seem to bring any further technical effect going beyond the normal physical interactions between the programme and the hardware on which it is run (see Guidelines, G-II, 3.66).

2.4 Finally, the added features of dependent claims 2-6, 8-9, 11-13 concern the definition per se of flight restriction regions and relate to rules and/or method for performing mental acts.

Said additional features do not bring any technical contribution to the art, and thus the presence of an inventive step must be denied (see guidelines G-VII, 5.4 & G-VII, 5.2, second paragraph).

## 3 Novelty (Art. 54(1)&(2) EPC)

3.1 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of **independent claim 1** is not new within the meaning of Article 54(1) and (2) EPC.

3.2 Document D1 ([0002], [0047]-[0052]) discloses a method of collecting information regarding a plurality of flight restriction regions, said method comprising:

- receiving, from user input devices, input designating parameters of flight restriction regions, wherein the parameters include a location of the flight restriction regions; and
- determining, with aid of one or more processors, a space for each of the flight restriction regions, wherein the space depends on the parameters of the flight restriction regions.

The subject-matter of claim 1 is therefore not new.

3.3 Furthermore the subject-matter of claim 1 lacks novelty with regards to Document D2 (paragraphs [0004], [0008] - [0010], [0019] - [0021], [0025] - [0026]; figures 1, 2) or Document D3 (column 1, lines 40-50; figures 1-3; column 2, lines 25-38, 45-63; column 3, lines 13-19; column 3, line 66 - column 4, line 25).

3.4 The above reasoning applies mutatis mutandis to the subject of **independent claims 14, 15** which is therefore not new.

3.5 **Dependent claims 2-13** do not appear to contain any additional features which, in combination with the features of any claim to which they refer, meet the requirements of the EPC with respect to novelty and/or inventive step.

- The added features of dependent claims 2-6, 8-9, 11-13 concern the definition per se of flight restriction regions and are known or rendered obvious by Document D1 (e.g. time reference, [0036], [0045]), D2 (geometry,type of aircraft, operational flight situation, [0009]-[0010], [0019]-[0021], [0025]) or D3 ((column 1, lines 40-50; column 2, lines 25-38, 45-63; column 3, lines 13-19).
- The added feature of claim 10 is conventional and for instance disclosed by Document D1 (fig. 5A, [0054]), document D2 ([0023]), Document D3 (col. 1, l. 65-col. 2, l. 3).
- The added feature of claim 7 (e.g. password requirement) is conventional.

## 4 Procedure

4.1 Because of the reasons stated above, claims 1-15 are not allowable.

In view of the available prior art, it does not appear that any part of the application could serve as a basis for a new allowable claim. Thus, in the present case it appear that the application should be refused under Article 97(2) EPC.

4.2 Should the applicant nevertheless regard some particular matter as patentable, he may file new claims which take account the above comments. The attention of the applicant is drawn to the fact that the application may not be amended in such a way that it contains subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC).

4.3 The applicant should also indicate in the letter of reply the difference of the new independent claim vis-à-vis the state of the art and the significance thereof; i.e. the applicant should indicate the underlying technical problem solved in an inventive way by those features of the independent claim which form a contribution over the prior art. In the letter of reply, the applicant is requested to apply the problem-solution approach for inventive step as outlined in the Guidelines G-VII, 5.

4.4 In order to comply with the requirements of Rule 137(4) EPC, the applicant should clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (see Guidelines H III, 2.1).

4.5 If the applicant considers it appropriate, these indications could be submitted in handwritten form on a copy of the relevant parts of the application as filed or in documents with tracked changes.

4.6 Amendments should be made by filing replacement pages. Unnecessary recasting of the description should be avoided. An amended abstract is not required. The applicant should also take account of the requirements of Rule 49 & 50(1) EPC according to which replacement pages shall be typed or printed. Handwritten amendments and submissions will be considered a formal deficiency which must be remedied. If handwritten amendments are submitted, they should be clearly legible to the printer.